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Samoa

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The United Nations country team and the Committee on Enforced Disappearances recommended that Samoa ratify the International Covenant on Economic, Social and Cultural Rights and the International Convention on the Elimination of All Forms of Racial Discrimination.[2] The Committee on Enforced Disappearances recommended that Samoa ratify the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families.[3] The Committee on the Rights of Persons with Disabilities, the Committee on Enforced Disappearances and the United Nations country team recommended that Samoa ratify the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.[4] The United Nations country team also recommended that Samoa ratify the Optional Protocol to the International Covenant on Civil and Political Rights[5] and the Committee on the Rights of Persons with Disabilities also recommended that it consider ratification of the Optional Protocol to the Convention on the Rights of Persons with Disabilities.[6]

3. After his visit in 2024, the Special Rapporteur on the implications for human rights of the environmentally sound management and disposal of hazardous substances and wastes also recommended that Samoa ratify the International Covenant on Economic, Social and Cultural Rights and its Optional Protocol.[7]

4. The Committee on Enforced Disappearances invited Samoa to make, without undue delay, the declarations necessary to recognize the Committee's competence to receive and consider individual and inter-State communications under articles 31 and 32 of the International Convention for the Protection of All Persons from Enforced Disappearance.[8]

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5. The United Nations country team noted that the initial report of Samoa to the Committee against Torture remained overdue and recommended that it prioritize the submission, with the support of the Office of the United Nations High Commissioner for Human Rights (OHCHR).[9]

6. The Committee on Enforced Disappearances recommended that Samoa consider ratifying the Convention on Protection of Children and Cooperation in respect of Intercountry Adoption.[10]

7. The Committee on the Rights of Persons with Disabilities recommended that Samoa ratify the Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired or Otherwise Print Disabled.[11]

8. The United Nations Educational, Scientific and Cultural Organization (UNESCO) encouraged Samoa to ratify the Convention against Discrimination in Education, the Global Convention on the Recognition of Qualifications concerning Higher Education and the Asia-Pacific Regional Convention on the Recognition of Qualifications in Higher Education.[12]

9. Samoa is covered by the OHCHR Regional Office for the Pacific. An OHCHR Human Rights Adviser has been part of the Resident Coordinator multi-country office in Samoa since 2022 to strengthen rule of law and accountability for human rights violations, enhance and protect civic space and people's participation, and integrate human rights in sustainable development.[13]

III. National human rights framework

1. Constitutional and legislative framework

10. The Committee on Enforced Disappearances observed with concern that the definition of victim contained in section 2 of the Sentencing Act 2016 did not fully comply with article 24 of the International Convention for the Protection of All Persons from Enforced Disappearance insofar as it did not guarantee the inclusion of any individual who had suffered harm as the direct result of an enforced disappearance. The Committee recommended that Samoa adopt a definition of "victim" in national legislation in full compliance with article 24 (1) of the Convention.[14]

11. The same Committee called upon Samoa to incorporate the International Convention for the Protection of All Persons from Enforced Disappearance into domestic legislation and ensure that its provisions could be directly invoked before and applied by national courts or other competent authorities. It urged Samoa to incorporate enforced disappearance into national legislation as an autonomous offence in accordance with the definition contained in article 2 of the Convention.[15]

12. The Special Rapporteur on hazardous substances and wastes recommended that Samoa enshrine the right to a clean, healthy and sustainable environment in its domestic legal framework.[16]

13. UNESCO encouraged Samoa to consider enshrining the right to education in the Constitution and its legislation and to guarantee in its legislation at least 12 years of free primary and secondary education.[17]

14. The Committee on the Rights of Persons with Disabilities recommended that Samoa explicitly recognize disability among prohibited grounds of discrimination, including intersectional discrimination, in the Constitution and other relevant laws, and recognize the denial of reasonable accommodation as a form of discrimination.[18]

2. Institutional infrastructure and policy measures

15. While welcoming the reaffirmed A status accreditation of the Office of the Ombudsman by the Global Alliance of National Human Rights Institutions, the Committee on Enforced Disappearances recommended that Samoa strengthen the Office of the Ombudsman by providing it with the human, financial and technical resources it required to

carry out its mandate effectively and independently, in full compliance with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles), including in relation to enforced disappearance.[19]

16. The same Committee recommended that Samoa enshrine in legislation the competence of the Ombudsman to conduct unannounced visits to all places where persons were or might be deprived of liberty.[20] The United Nations country team observed that there had not been an officially appointed Ombudsman in Samoa since 2023 and that the Office of the Ombudsman had been relying on acting Ombudsmen in the interim. It recommended that Samoa appoint the Ombudsman through an independent and transparent process without further delay.[21]

17. The Committee on the Rights of Persons with Disabilities recommended that Samoa ensure that the mandate of the Office of the Ombudsman explicitly included monitoring of the Convention on the Rights of Persons with Disabilities, strengthen cooperation mechanisms and ensure the participation of organizations of persons with disabilities in its advisory structures.[22]

18. Pending ratification by Samoa of the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, the same Committee recommended that it establish an independent monitoring and oversight mechanism to investigate all forms of torture or cruel, inhuman or degrading treatment or punishment of persons with disabilities in all settings.[23]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

19. The same Committee recommended that Samoa adopt comprehensive legislation and policies to address intersectional discrimination against women and girls with disabilities and ensure the systematic mainstreaming of disability across frameworks on gender equality and the prevention of violence.[24]

2. Right to life, liberty and security of person, and freedom from torture

20. The Committee on Enforced Disappearances noted that the Constitution (arts. 105–108) permitted derogation from certain rights during a state of emergency. It recommended that Samoa expressly incorporate the absolute prohibition of enforced disappearance into its domestic legislation and ensure that no exceptional circumstances could be invoked to justify enforced disappearance. It invited Samoa to incorporate the prohibition of enforced disappearance into the Constitution.[25]

21. The same Committee recommended that Samoa: (a) develop and implement a strategy and a mechanism to search for disappeared persons, ensuring that the search began as soon as authorities became aware of a disappearance; and (b) ensure that all allegations of enforced disappearance were investigated promptly, thoroughly, effectively and impartially, even in the absence of a formal complaint, and with due diligence at all stages of the process.[26]

22. The same Committee was concerned about the lack of a legal provision prohibiting secret or unofficial detention and the lack of clarity concerning the maximum time a person could be held in police custody. It recommended that Samoa expressly prohibit secret detention in national legislation and harmonize its legislation to ensure that persons arrested or detained on a criminal charge were brought promptly before a judge, within 24 hours.[27]

23. The same Committee requested that Samoa ensure that all allegations of disappearance or enforced disappearance were duly investigated until the fate of the disappeared person was clarified.[28]

24. The Committee on the Rights of Persons with Disabilities noted with concern the isolation of persons with disabilities in prisons, the lack of accessibility and of disability-inclusive measures in places of detention and the lack of independent monitoring and oversight of detention centres. It recommended that Samoa: (a) amend legislation to explicitly prohibit deprivation of liberty on the basis of impairment, and repeal all legislation that restricted legal capacity on the basis of impairment, including provisions of the Mental Health Act; and (b) immediately stop the isolation of persons with disabilities in prisons and detention centres, ensure accessibility, reasonable accommodation and the collection of disability-disaggregated data in all places of detention and strengthen safeguards in and independent monitoring of detention facilities with the participation of organizations of persons with disabilities.[29]

25. The same Committee recommended that Samoa abolish all forms of torture or cruel, inhuman or degrading treatment or punishment of persons with disabilities in all settings.[30]

3. Administration of justice, including impunity, and the rule of law

26. The United Nations country team recommended that Samoa strengthen the independence of the judiciary and prosecution services, including procedures for appointing and removing judges and the Attorney-General.[31]

27. The United Nations country team noted that justice processes remained heavily oriented toward reconciliation. While appropriate in some civil disputes, such prioritization in cases involving violence often undermined survivor safety, discouraged reporting and contributed to impunity. It recommended that Samoa strengthen survivor-centred access to justice by ensuring that reconciliation was not prioritized in cases involving violence against women and girls, and that accountability and survivor safety remained central to judicial processes.[32]

28. The Committee on Enforced Disappearances observed with concern that a criminal conviction was required for victims to have access to compensation and reparation. It recommended that Samoa: (a) ensure that any individual who had suffered harm as a direct result of enforced disappearance had access to a system of full and adequate reparation that complied with article 24 (4) and (5) of the International Convention for the Protection of All Persons from Enforced Disappearance, including not only compensation but also rehabilitation, satisfaction and guarantees of non-repetition, and that was applicable even if no criminal proceedings had been initiated; and (b) recognize in national legislation the right of victims of enforced disappearance to know the truth and the importance of the memorialization of such acts.[33]

29. The same Committee regretted that the existing legislation did not specify that no law enforcement or security forces whose members were suspected of involvement in the commission of enforced disappearance could participate in the investigation. It recommended that Samoa review its legislative and institutional framework to guarantee that those suspected of having committed or taken part in the commission of enforced disappearance were not in a position to influence the progress of an investigation, including by ensuring that they were suspended from their duties from the outset and for the duration of the investigation, without prejudice to the presumption of innocence.[34]

30. The Committee on the Rights of Persons with Disabilities recommended that Samoa establish disability-inclusive police, prosecutorial and judicial systems by guaranteeing procedural and age-appropriate accommodations at all stages of legal proceedings, ensure accessible, confidential and disability-inclusive reporting mechanisms in police, prosecutorial, court and victim support services and repeal the provisions of the Evidence Act 2015 that permitted the exclusion of persons with disabilities from serving as witnesses.[35]

4. Fundamental freedoms and the right to participate in public and political life

31. UNESCO recommended that Samoa decriminalize defamation and place it within civil defamation legislation that was in accordance with international standards.[36] The United Nations country team made a similar recommendation.[37]

32. While noting that freedom of speech, assembly and association was protected under article 13 of the Constitution, the Committee on Enforced Disappearances noted with concern that the Crimes Act 2013 criminalized "unlawful" and "disorderly" assembly (sects. 42 and 43) and also noted restrictions on the right to assembly and association, particularly regarding traditional village governance (art. 24). The Committee recommended that Samoa respect and promote the right of all persons to form and freely participate in organizations and associations and that it guarantee an open civic space for the activities of civil society organizations.[38]

33. The United Nations country team noted that there had been challenges to media freedom in Samoa, including public criticism of journalists, legal action and repeated restrictions on their access to political processes, which limited the ability of the press to fulfil its role in promoting transparency and accountability. As the Media Council was currently inactive due to a lack of financial support, no formal investigations had been conducted. The country team recommended that Samoa ensure prompt, impartial investigation into all allegations of threats, intimidation or violence against journalists.[39]

34. The United Nations country team also recommended that Samoa affirm publicly the State's commitment to the protection of freedom of religion for all persons, including religious minorities, in accordance with article 11 of the Constitution and the International Covenant on Civil and Political Rights.[40]

35. The Committee on the Rights of Persons with Disabilities noted with concern the insufficient representation of persons with disabilities in and participation as candidates for elected and appointed bodies and the absence of targeted measures to address their underrepresentation in public and political decision-making. It recommended that Samoa review electoral laws and policies, including the national policy on inclusive governance, to ensure full disability inclusion and accessibility in voting, polling districts and stations and political processes.[41]

36. The same Committee recommended that Samoa: (a) implement legislation to guarantee access to information and communications in accessible and assistive formats and modes, including sign language, Braille, Easy Read, plain language, sign language, captioning, audio description, augmentative and alternative communication, tactile formats and accessible digital formats; and (b) ensure that the draft policy on freedom of information fully incorporated those obligations regarding accessibility.[42]

37. The Special Rapporteur on hazardous substances and wastes noted that the domestic legal framework did not explicitly establish the right to access information.[43] UNESCO expressed the same concern and encouraged Samoa to introduce an access to information law that was in accordance with international standards, in particular establishing an independent oversight institution with the capacity to implement the access to information law.[44]

38. The Special Rapporteur on hazardous substances and wastes noted that there was no information on the types of chemicals released from the onsite incinerators at landfill sites or their impacts on health, impeding the ability of workers on the landfill and neighbouring communities to make informed decisions about their risks of exposure. He recommended that Samoa: (a) ensure that legislation and policies were easily accessible to all, including by making them available online; and (b) foster greater environmental awareness among communities and young people, including about the risks of exposure to toxic substances, by further reinforcing environmental education in the school curriculum and at the community and village levels, among other actions.[45]

5. Right to privacy

39. The Committee on the Rights of Persons with Disabilities recommended that Samoa ensure the confidentiality and protection of the personal, health and rehabilitation information of persons with disabilities, in particular deaf persons, and establish effective oversight and accessible complaint and redress mechanisms for violations of privacy.[46]

6. Right to marriage and family life

40. The same Committee recommended that Samoa: (a) eliminate ableist and gender stereotypes that undermined the rights of persons with disabilities to marry, have a family and exercise parental responsibilities on an equal basis with others, including by amending the Family Safety Act to explicitly include the right of persons with disabilities to respect for home and the family and by conducting awareness-raising and capacity-building on intersectional discrimination; and (b) ensure that persons with disabilities were able to make free choices with regard to intimate relationships and marriage, and that women with disabilities could retain custody of their children on an equal basis with others, by establishing safeguards against family interference, providing disability-inclusive parenting support and adopting measures to eliminate gender and disability stereotypes and prevent coercive practices, including forced abortion.[47]

7. Prohibition of all forms of slavery, including trafficking in persons

41. The Committee on Enforced Disappearances regretted that, although it was facing an increase in 2026 in human trafficking in the Pacific Islands for sexual exploitation and forced labour in fishing, tourism, domestic work and agriculture, the Crimes Act 2013 did not include comprehensive anti-trafficking provisions and the State did not have stand-alone legislation and a national action plan on trafficking in persons. The Committee recommended that Samoa consider drafting or amending legislation to develop a comprehensive trafficking in persons law that was aligned with international standards and elaborate a national action plan on trafficking in persons.[48]

42. The United Nations country team recommended that Samoa ensure accurate data collection on forced labour, slavery and trafficking in persons, particularly within Samoa and in cooperation with New Zealand in relation to adoptions in diaspora communities.[49]

8. Right to work and to just and favourable conditions of work

43. The Committee on the Rights of Persons with Disabilities noted with concern persistent barriers to employment, including inaccessible workplaces and recruitment processes, employer bias, substandard working conditions, underpayment and intersectional discrimination, particularly affecting women with disabilities. It recommended that Samoa: (a) amend the Labour and Employment Relations Amendment Act 2023 to explicitly prohibit intersectional discrimination, establish the denial of reasonable accommodation as a form of discrimination and strengthen mechanisms for labour inspection and enforcement; and (b) adopt targeted measures to increase the participation of persons with disabilities in the open labour market, including through inclusive public sector employment policies, employment incentives and support measures, with a particular focus on women with disabilities.[50]

9. Right to an adequate standard of living

44. The same Committee noted with concern the high levels of multidimensional poverty experienced by persons with disabilities. It recommended that Samoa: (a) adopt a clear legislative framework for disability benefits, with transparent eligibility criteria, accessible registration procedures and effective grievance and appeals mechanisms; (b) ensure timely and consistent delivery of disability benefits; and (c) address the root causes of multidimensional poverty among persons with disabilities through disability-inclusive social protection programmes, disability cash benefits, access to affordable housing and community-based support.[51]

10. Right to health

45. The United Nations country team acknowledged that Samoa had advanced the right to health through strengthened primary healthcare, expanded surveillance and targeted immunization recovery. However, the 2025 dengue fever outbreak, with more than 1,700 confirmed cases and eight child fatalities, had placed significant strain on the health system and prompted national emergency measures. The country team recommended that

Samoa further strengthen primary healthcare and community-based service delivery, including by making more health personnel available in rural areas and increasing access to services in rural areas.[52]

46. The United Nations country team also observed that, pursuant to the Crimes Act 2013, abortion was illegal unless it was performed to preserve the mother's life, physical or mental health and the pregnancy was not more than 20 weeks gestation. It recommended that Samoa conduct research to inform legislative review and alignment of the legal framework on safe abortion and adopt clinical guidelines for safe abortion and post-abortion care.[53]

47. The Committee on the Rights of Persons with Disabilities noted with concern the continued use of substitute decision-making in healthcare, particularly for persons with intellectual and/or psychosocial disabilities. It recommended that Samoa eliminate substitute decision-making in healthcare and implement free and informed consent procedures in full alignment with the Convention on the Rights of Persons with Disabilities.[54] It also recommended that Samoa repeal legal provisions, including from the Mental Health Act, and practices that permitted involuntary detention, treatment and substitute decision-making on the basis of disability, and establish supported decision-making in all medical procedures.[55]

48. The same Committee further recommended that Samoa guarantee the dissemination of accessible information on healthcare and strengthen referral pathways between health and victim support services and the accessibility of health facilities and services, the availability of sign language interpretation, the provision of reasonable accommodation and the mandatory training of health professionals on disability rights and inclusive healthcare.[56]

11. Right to education

49. The United Nations country team noted that, while primary enrolment was relatively high, secondary participation decreased, limiting future opportunities. It recommended that Samoa implement targeted interventions to reduce out-of-school rates and improve secondary completion, including financial support and community engagement. It also recommended that Samoa strengthen foundational learning through improved teacher training, curriculum reform and evidence-based pedagogy to ensure that all children met minimum standards.[57]

50. The United Nations country team further recommended that Samoa implement comprehensive hygiene education programmes in schools to promote behavioural change and reduce preventable diseases among children.[58]

51. The Committee on the Rights of Persons with Disabilities noted with concern persistently high dropout rates among persons with disabilities, including the fact that 19 per cent of children with disabilities aged 5–17 had never attended school, limited transition to tertiary education and low literacy levels, compounded by limited teacher training, bullying and discrimination in schools and a focus on enrolment rather than learning outcomes, and barriers affecting access for women and girls with disabilities to education, particularly the lack of disability-inclusive menstrual hygiene measures.[59]

52. The same Committee recommended that Samoa: (a) amend the Education Act 2009 and enact implementing programmes to explicitly guarantee the right to inclusive education at all levels and adopt time-bound measures to establish a single inclusive education system with accessible learning environments, individualized support, trained teachers and accessible learning materials; (b) address the root causes of school dropout rates among students with disabilities; and (c) remove all barriers to education by ensuring accessible school infrastructure, transport and learning materials and expanding inclusive support services beyond Apia.[60]

12. Cultural rights

53. The same Committee recommended that Samoa fully integrate disability sport and inclusive recreation into national legislation and policy frameworks, including the National Sports in Education Policy.[61]

54. As it was a State Party to the Convention for the Protection of the World Cultural and Natural Heritage (1972), the Convention for the Safeguarding of the Intangible Cultural

Heritage (2003) and the Convention on the Protection and Promotion of the Diversity of Cultural Expressions (2005), UNESCO encouraged Samoa to fully implement the relevant provisions that promoted access to and participation in cultural heritage and creative expressions and, as such, were conducive to implementing the right to take part in cultural life.[62]

13. Development, the environment, and business and human rights

55. The Special Rapporteur on hazardous substances and wastes noted that, despite its minimal contribution to global pollution, Samoa was disproportionately affected by climate change, plastic pollution and hazardous waste, endangering its environment.[63]

56. The same Special Rapporteur acknowledged that Samoa had a relatively well-developed legislative framework for waste management, notably the Waste Management Act 2010 and several other planning and environmental laws. He recommended that Samoa make the explicit link between plastics and climate change in its domestic laws and policies, which could help reframe plastic pollution as a climate change issue, raise awareness and influence consumer decisions accordingly.[64]

57. The same Special Rapporteur also recommended that Samoa develop or strengthen several pieces of legislation, including: (a) strengthening the enforcement of the Waste (Plastic Bag) Management Regulations 2018; (b) establishing special customs codes for waste imports and exports, including e-waste, to facilitate the country's compliance with its obligations under the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal and the Convention to Ban the Importation into Forum Island Countries of Hazardous and Radioactive Wastes and to Control the Transboundary Movement of Hazardous Wastes within the South Pacific Region; (c) regulating the quality of tyre imports; and (d) banning the import, manufacturing and use of asbestos and adopting legislation that was in line with the polluter pays principle and that included take-back schemes.[65]

58. The United Nations country team recommended that Samoa integrate climate resilience into school infrastructure and emergency preparedness, ensuring continuity of learning and child safety during emergencies.[66]

59. The Committee on the Rights of Persons with Disabilities noted with concern the limited participation of persons with disabilities in climate change policymaking. It recommended that Samoa mainstream disability into all climate policies and plans, including the Disaster and Emergency Management Act 2007 and the National Disaster Management Plan.[67]

B. Rights of specific persons or groups

1. Women

60. The United Nations country team indicated that, while Samoa had continued to make progress in terms of gender equality, women remained underrepresented in the parliament, Cabinet, State-owned enterprises and local governance structures and sexist discrimination against women political leaders persisted.[68] The Special Rapporteur on hazardous substances and wastes noted that there were structures within the Samoan traditional system, such as the women's committee at the village level, that could be leveraged to ensure that women's perspectives were reflected in consultations on new environmental regulations or in policy development. He recommended that Samoa reinforce the voices of women's committees and youth groups in the development of environmental laws and policies.[69]

61. The United Nations country team noted that gender-based violence remained one of the most pervasive human rights challenges in Samoa, that impunity for violence against women and girls persisted and that prevention efforts were underresourced and unevenly implemented. It recommended that Samoa fully resource the implementation of the Pola Puipui National Prevention Framework and strengthen data collection and analysis to monitor gender-based violence in terms of prevalence, response and prevention outcomes, disaggregating the data by sex, age, disability status and geographic location.[70]

62. The Committee on the Rights of Persons with Disabilities recommended that Samoa implement comprehensive measures to prevent early marriage and teenage pregnancy among girls with disabilities, ensure access to menstrual hygiene support and age-appropriate and accessible information and services on sexual and reproductive health and implement social protection measures for widows with disabilities.[71]

2. Children

63. While taking note of the progress in birth registration coverage among children under 5 years of age, the Committee on Enforced Disappearances was concerned that the birth registration rate in Samoa was one of the lowest in the Pacific.[72] The Committee on the Rights of Persons with Disabilities recommended that Samoa strengthen civil registration systems to ensure universal birth registration of children with disabilities, particularly in rural and outer islands, by introducing accessible registration procedures, mobile services and registration campaigns.[73]

64. While noting the criminalization of the abduction of children under the age of 16, pursuant to the Crimes Act 2013, the Committee on Enforced Disappearances regretted that national legislation did not penalize the wrongful removal of children. It recommended that Samoa prevent the disappearance of children by strengthening the birth registration system, ensuring the registration of the births of all children, raising awareness among the general public of the importance of birth registration and improving the completeness and accuracy of information collected at birth. It also recommended that Samoa investigate and prosecute any person involved in an illegal adoption that might constitute an enforced disappearance.[74]

65. The United Nations country team noted that the adoption of the Child Protection Bill remained pending and recommended that Samoa align it with the Convention on the Rights of the Child and adopt it without further delay.[75] UNESCO encouraged Samoa to legally proscribe corporal punishment in education settings.[76]

66. The Committee on the Rights of Persons with Disabilities recommended that Samoa: (a) review and align all child-related legislation with the Convention on the Rights of Persons with Disabilities and ensure that disability was mainstreamed into child-related policies; and (b) adopt comprehensive measures to combat the stigmatization of and harmful practices against children with disabilities, prohibit all forms of violent discipline and establish accessible and child-friendly mechanisms for early identification, reporting and access to justice.[77]

67. The same Committee recommended that Samoa establish age-appropriate mechanisms for the meaningful participation of children with disabilities in all decisions affecting them and provide accessible information and support to enable their views to be freely and securely expressed.[78]

3. Older persons

68. The same Committee recommended that Samoa: (a) ensure the inclusion of persons with disabilities, particularly older persons with disabilities, in programmes concerning livelihood, pensions and income-generation, including through accessible training, financial support and participation in rural development and climate-resilient livelihood initiatives; and (b) remove legal and administrative barriers preventing older persons with disabilities from receiving both the older persons' pension and disability benefits and guarantee that they enjoyed an adequate standard of living and social protection.[79]

4. Persons with disabilities

69. The same Committee noted with concern the failure to amend legislation and policies, including the National Policy for Persons with Disabilities (2021–2031), to recognize the legal capacity of persons with disabilities, and to implement supported decision-making. It recommended that Samoa repeal all legislation under which the legal capacity of persons with disabilities was restricted on the basis of impairment, recognize the legal capacity of persons with disabilities on an equal basis with others in all aspects of life, develop procedures and safeguards to support the exercise of legal capacity, including assistance in

understanding information, and provide capacity-building for judges, lawyers, public officials and other stakeholders on the recognition of legal capacity and supported decision-making.[80]

70. The same Committee noted with concern: (a) that the Constitution and other relevant laws retained derogatory terminology when referring to persons with disabilities and wording that equated disability with a disadvantage or restriction, thereby reinforcing negative and stigmatizing understanding; and (b) the absence of a comprehensive and coherent legal and policy framework to give full effect to the Convention on the Rights of Persons with Disabilities.[81]

71. The same Committee recommended that Samoa: (a) amend the Constitution and other relevant laws to remove derogatory and stigmatizing terminology; and (b) adopt a comprehensive and coherent legal and policy framework to fully implement the Convention, including by expediting the issuance of the disability bill, reviewing and amending all legislation to eliminate medicalized language and to reflect the human rights model of disability.[82]

72. The same Committee noted with concern the persistent inaccessibility of the physical environment and transport systems, including public buildings, housing, health facilities, footpaths, public spaces and public transportation, and the weak enforcement of the National Building Code (2017). It recommended that Samoa identify, remove and prevent barriers to access to the physical environment and transport systems.[83]

73. The same Committee recommended that Samoa adopt a comprehensive and adequately resourced national habilitation and rehabilitation framework, including by ensuring public rehabilitation services, promoting research and innovation on assistive devices and guaranteeing that the provision of services began as early as possible based on multidisciplinary assessments of individual needs.[84]

74. The United Nations country team recommended that Samoa ensure that justice sector institutions, including the police and courts, were physically accessible and provided women with disabilities with reasonable accommodation, accessible information and communication support.[85]

5. Migrants, refugees and asylum-seekers

75. The Committee on Enforced Disappearances noted that Samoa was a Party to the Convention relating to the Status of Refugees, and that the Extradition Act 1974 established restrictions on extradition, including if it was related to an offence of a political character and if it would be “unjust or oppressive” to extradite the person.[86]

76. The same Committee recommended that Samoa: (a) ensure systematic and strict respect for the principle of non-refoulement; (b) consider explicitly prohibiting, in its national legislation, any expulsion, return, surrender or extradition when there were substantial grounds for believing that the person concerned might be in danger of being subjected to enforced disappearance; and (c) adopt clear criteria and procedures for assessing and verifying the risk of being subjected to enforced disappearance and, where there was such risk, ensure that the person concerned was not expelled, returned, surrendered or extradited.[87]

Notes

1 A/HRC/49/7 and A/HRC/49/2.
2 United Nations country team submission for the universal periodic review of Samoa, paras. 4 and 8; and CED/C/WSM/CO/1, para. 4.
3 CED/C/WSM/CO/1, para. 4.
4 CRPD/C/WSM/CO/1, para. 26 (c); CED/C/WSM/CO/1, para. 4; and United Nations country team submission, paras. 4 and 8.
5 United Nations country team submission, paras. 4 and 8.
6 CRPD/C/WSM/CO/1, para. 6 (b).
7 A/HRC/60/34/Add.2, para. 90 (d).
8 CED/C/WSM/CO/1, para. 10.

[9] United Nations country team submission, paras. 5 and 7.
[10] CED/C/WSM/CO/1, para. 64 (d).
[11] CRPD/C/WSM/CO/1, para. 58 (a).
[12] UNESCO submission for the universal periodic review of Samoa, para. 21 (i) and (ii).
[13] See https://www.ohchr.org/en/countries/samoa.
[14] CED/C/WSM/CO/1, paras. 49 (a) and 50 (a).
[15] Ibid., paras. 8 and 20 (a).
[16] A/HRC/60/34/Add.2, para. 90 (a).
[17] UNESCO submission, para. 21 (iii) and (v).
[18] CRPD/C/WSM/CO/1, para. 8 (a).
[19] CED/C/WSM/CO/1, para. 12.
[20] Ibid., para. 44 (e).
[21] United Nations country team submission, paras. 15 and 16.
[22] CRPD/C/WSM/CO/1, para. 64 (a).
[23] Ibid., para. 28.
[24] Ibid., para. 10 (a).
[25] CED/C/WSM/CO/1, paras. 15 and 16.
[26] Ibid., para. 30 (a) and (b).
[27] Ibid., paras. 43 (a) and (c) and 44 (a) and (c).
[28] Ibid., para. 32.
[29] CRPD/C/WSM/CO/1, paras. 25 (c) and 26 (a) and (c).
[30] Ibid., para. 28.
[31] United Nations country team submission, para. 50.
[32] Ibid., paras. 50 and 54.
[33] CED/C/WSM/CO/1, paras. 49 (b) and 50 (b) and (c).
[34] Ibid., paras. 33 and 34.
[35] CRPD/C/WSM/CO/1, para. 24 (a).
[36] UNESCO submission, para. 22.
[37] United Nations country team submission, para. 59.
[38] CED/C/WSM/CO/1, paras. 57 and 58.
[39] United Nations country team submission, paras. 58 and 61.
[40] Ibid., para. 147.
[41] CRPD/C/WSM/CO/1, paras. 55 (a) and 56 (b).
[42] Ibid., para. 40 (c).
[43] A/HRC/60/34/Add.2, para. 26.
[44] UNESCO submission, paras. 12 and 23.
[45] A/HRC/60/34/Add.2, paras. 26 and 91 (a) and (b).
[46] CRPD/C/WSM/CO/1, para. 42 (a).
[47] Ibid., para. 44 (a) and (b).
[48] CED/C/WSM/CO/1, paras. 41 (a) and 42 (a).
[49] United Nations country team submission, para. 152.
[50] CRPD/C/WSM/CO/1, paras. 51 (c) and 52 (a) and (b).
[51] Ibid., paras. 53 (c) and 54 (a)–(c).
[52] United Nations country team submission, paras. 66, 67 and 74.
[53] Ibid., paras. 21 and 26.
[54] CRPD/C/WSM/CO/1, paras. 47 (a) and 48 (a).
[55] Ibid., para. 32 (a).
[56] Ibid., para. 48 (b).
[57] United Nations country team submission, paras. 91, 95 and 97.
[58] Ibid., para. 140.
[59] CRPD/C/WSM/CO/1, para. 45 (b).
[60] Ibid., para. 46 (a)–(c).
[61] Ibid., para. 58 (b).
[62] UNESCO submission, para. 26.
[63] A/HRC/60/34/Add.2, para. 83.
[64] Ibid., paras. 19 and 90 (g).
[65] Ibid., para. 90 (e).
[66] United Nations country team submission, para. 136.
[67] CRPD/C/WSM/CO/1, paras. 19 (c) and 20 (a).
[68] United Nations country team submission, para. 18.
[69] A/HRC/60/34/Add.2, paras. 29 and 91 (c).
[70] United Nations country team submission, paras. 28, 32, 37 and 39.
[71] CRPD/C/WSM/CO/1, para. 10 (b).

[72] CED/C/WSM/CO/1, para. 61.
[73] CRPD/C/WSM/CO/1, para. 34 (a).
[74] CED/C/WSM/CO/1, paras. 59, 62 and 64 (b).
[75] United Nations country team submission, paras. 10 and 13.
[76] UNESCO submission, para. 21 (vii).
[77] CRPD/C/WSM/CO/1, para. 12 (a) and (b).
[78] Ibid., para. 12 (c).
[79] Ibid., para. 54 (d) and (e).
[80] Ibid., paras. 21 and 22 (a).
[81] Ibid., para. 5 (a) and (b).
[82] Ibid., para. 6 (a) and (b).
[83] Ibid., paras. 15 (c) and 16 (c).
[84] Ibid., para. 50 (a).
[85] United Nations country team submission, para. 55.
[86] CED/C/WSM/CO/1, para. 39.
[87] Ibid., para. 40 (a) and (b).